

Doctrine of estoppel does not arise in the case the petitioner is not a party to the disputed document. – The question of estoppel does not arise in view of the fact that the petitioner is not a party to the document and the respondent itself admitted that the guarantee was a mobilization of advance guarantee.

128. Savings as to certain rights : (1) The right of any person to claim compensation under Sec. 124 shall not affect the right of any such person to recover compensation payable under the workmen's compensation Act, 1923 ,(8 of 1923) or any other law for the time being in force; but no person shall be entitled to claim compensation more than once in respect of the same accident.

(2) Nothing in sub-section (1) shall affect the right of any person to claim compensation payable under any contract or scheme providing for payment of compensation for death or personal injury or for damage to property or any sum payable under any policy of insurance.

Comment

Section 128 saves the right of a person to claim compensation recoverable under any other law.

129. Power to make rules in respect of matters in this chapter : (1) The central Government may, by notification , make rules to carry out the purposes of this chapter.

(2) In particular , and without prejudice to the generally of the foregoing power. Such rules may provide for all or any of the following matters, namely :

- (a) the compensation payable for death;
- (b) the nature of the injuries for which compensation shall be paid and the amount of such compensation.

Comment

Section 129 empowers the Central Government to make rules for carrying out the purposes of Chapter XIII. The matters in respect of which rules shall be made by the Central Government are enumerated in detail in sub-section (2) of this section.

CHAPTER XIV

Regulation of hours of work and period of rest

130. Definitions : In this Chapter, unless the context otherwise requires :